

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201708943	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 10/29/2017 5:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 4/29/2019	Precinct: 83		
Date/Time CV Reported Mon, 10/30/2017 8:59 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 10/30/2017 8:59 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Todd Hansen	13329	949083	075 PCT
2. DTS Robert Mayer	5320	940441	075 PCT
3. DTS Joseph Nicosia	5336	949395	075 PCT
4. SSA Gary Calhoun	00622	903537	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Todd Hansen	Abuse: Police Officer Todd Hansen entered and searched § 87(2)(b).	A . Exonerated
B . DTS Robert Mayer	Abuse: Detective Robert Mayer entered and searched § 87(2)(b) in Brooklyn.	B . Exonerated
C . DTS Joseph Nicosia	Abuse: Detective Joseph Nicosia entered and searched § 87(2)(b) in Brooklyn.	C . Exonerated
D . SSA Gary Calhoun	Abuse: Sergeant Gary Calhoun entered and searched § 87(2)(b) in Brooklyn.	D . Exonerated

Case Summary

On October 30, 2017, § 87(2)(b) § 87(2)(b) filed this complaint via phone on behalf of his mother, § 87(2)(b) who is the lease-holder of § 87(2)(b). A verified statement was provided by her son, § 87(2)(b) who was present at the time, and who occasionally stays inside of the apartment.

On October 29, 2017, at approximately 5:00 a.m., Police Officer Todd Hansen, Detective Robert Mayer, Detective Joseph Nicosia, and Sergeant Gary Calhoun, all of the 75th Precinct Field Intelligence Office entered and searched § 87(2)(b) (**Allegations A-D: Abuse of Authority, exonerated**).

Requests to NYCHA, which administers § 87(2)(b), for video footage were met with negative results.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Todd Hansen entered and searched § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Detective Robert Mayer entered and searched § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Detective Joseph Nicosia entered and searched § 87(2)(b) in Brooklyn.

Allegation (D) Abuse of Authority: Sergeant Gary Calhoun entered and searched § 87(2)(b) in Brooklyn.

It is undisputed that on October 29, 2017, PO Hansen and Det. Mayer of the 75th precinct Field Intelligence Office obtained a search warrant § 87(2)(f), § 87(2)(e).

It is undisputed that they and the additional members of the Field Intelligence Office, Det. Nicosia and Sgt. Calhoun, searched the apartment (**Board Reviews 1, 2, 3, 4, and 5**).

A copy of the warrant indicated that it was sworn out by PO Hansen in Kings County Criminal Court on the morning of § 87(2)(b) for § 87(2)(b) (**Board Review 6**).

New York State Criminal Procedure Law, article 690, section 10 empowers officers to search locations for which they have warrants signed by a judge. Section 30 of the same article stipulates that these warrants must be executed within ten days' of their being sworn out (**Board Review 7**).

§ 87(2)(g)

It is therefore recommended that **Allegations A, B, C, and D** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the fifth CCRB complaint filed by § 87(2)(b)

- § 87(2)(b)

§ 87(2)(b)

- This is the first CCRB complaint involving either § 87(2)(b) or § 87(2)(b) (Board Review 8).
- PO Hansen has been a member of service for seven years. 10 previous complaints, with 28 prior allegations have been filed against him (**Board Review 9**).
 - Five allegations have been substantiated against PO Hansen, of which three are entry allegations. A search and seizure of a cellphone was substantiated in case 201121134, for which the APU secured a guilty verdict, and for which PO Hansen forfeited 20 vacation days. An APU guilty verdict was also reached for three separate entry and search allegations in case 201405351, for which PO Hansen also forfeited 20 vacation days. A refusal to provide name and shield allegation was substantiated in case 201502623, for which he received Command Discipline A.
 - Two additional entry and search allegations have been filed against PO Hansen, in 201218924 and 201405564, which were exonerated and unsubstantiated, respectively.
 - § 87(2)(g)
- Det. Mayer has been a member of service for 12 years. 13 prior complaints have been filed against him, with a total of 20 prior allegations (**Board Review 9**).
 - Two prior allegations filed against Det. Mayer have been closed as substantiated. One of these allegations is an entry and search allegation, in case 201111996, it was substantiated, resulting in a recommendation for command discipline. Det. Mayer received instructions. A stop allegation in case 201207718 was substantiated, and Det. Mayer forfeited one vacation day.
 - § 87(2)(g), § 87(4-b)
 - Two entry allegations filed against Det. Mayer, in cases 201301181 and 20130355, were closed as exonerated. An additional entry allegation in case 201605910 was closed as unsubstantiated.
 - § 87(2)(g)
- Det. Nicosia has been a member of service for seven years. Five prior complaints, with 13 previous allegations, have been filed against him (**Board Review 9**).
 - Det. Nicosia received charges for substantiated threat of property damage, discourteous action, and search of person allegations, § 87(2)(g)

The New York Police Department chose not to penalize Det. Nicosia for the FADO allegations. § 87(2)(b), § 87(2)(g)

 - § 87(2)(g)

- Sgt. Calhoun has been a member of service for 24 years. He has been a subject officer in 16 complaints filed before the current one. 42 allegations have been filed against him (**Board Review 9**).
 - 14 prior allegations against Sgt. Calhoun have been substantiated. § 87(2)(g) [REDACTED].
 - In case 9700541, push, gun pointed, force, threat of force, discourtesy, and offensive language-race: black allegations were substantiated against Sgt. Calhoun. Charges were recommended, but the final penalty was unavailable.
 - In case 9802616, charges were recommended for substantiated push and “arrest” charges. The ultimate penalty levied was unavailable.
 - In case 200901903, Sgt. Calhoun received Command Discipline B for substantiated vehicle stop, frisk, and search of individual allegations. He was not penalized by the NYPD for substantiated a substantiated vehicle search allegation.
 - In case 201304366, charges were recommended for Sgt. Calhoun for a vehicle search allegation, and he forfeited four vacation days.
 - In case 201502560, charges were recommended for a frisk allegation, and Sgt. Calhoun ultimately forfeited four vacation days.
 - In case 201610434, entry and search allegations were exonerated. In case 201704238, two entry and search allegations were exonerated, and one entry and search allegation was unsubstantiated.
 - § 87(2)(g) [REDACTED].

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to the § 87(2)(b) [REDACTED] family retaining an attorney for civil action.
- On January 29, 2018, the New York City Office of the Comptroller confirmed that they have not received a notice of claim for this incident (**Board Review 10**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad #9

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____
Signature Print Title & Name Date